

23CMCV00632 23CMCV00632

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-02

Motion: THIRD PARTY COAST NATIONAL INSURANCE COMPANY'S MOTION TO INTERVENE

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Case Number: 23CMCV00632 Hearing Date: July 2, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

TAKEMA COX,

Plaintiff,

vs.

RICARDO

BUENROSTRO, et al.,

Defendants.

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CASE NO: 23CMCV00632

[TENTATIVE]

ORDER RE: THIRD PARTY COAST NATIONAL INSURANCE COMPANY'S MOTION TO INTERVENE

Dept.

A

DATE:

July 2, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 05/03/2023

TRIAL:

10/26/2026

MOVING

PARTY: Third Party Coast

National Insurance Company

RESPONDING

PARTY: None

1. Background

This is a motor vehicle

collision action. Plaintiff Takema Cox ("Plaintiff") alleges that defendants Ricardo Buenrostro; Buenrostro Farm, Inc.; St. Moll, Inc. dba Integrity Tire; and Christopher B. Moll failed to use reasonable care in the ownership, entrustment, repair, maintenance, management, control, and/or operation of the motor vehicle, resulting in a vehicular collision with Plaintiff's motor vehicle.

2. Discussion

Third Party

Coast National Insurance Company ("Movant") moves for leave to intervene in this action. Movant contends that it is the insurer for Defendant Buenrostro Farm, Inc. ("Buenrostro Farm"), and that Buenrostro Farm is a suspended corporation that cannot defend itself in this action. No parties have opposed this motion.

Code of Civil Procedure §

387, subd. (d) provides the following:¿

"(1)

The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied:

(A)

A provision of law confers an unconditional right to intervene.¿

(B)

The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately

represented by one or more of the existing parties.

(2)

The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.”

(Code Civ. Proc. § 387, subd. (d).)

Whether the petitioner

has an interest in the matter in litigation is a question of fact that must be determined by the court before leave to file is granted. (Muller v. Robinson (1959) 174 Cal.App.2d 511, 515; In re Yokohama Special Bank (1948) 86 Cal.App.2d 545.) The burden rests on the one seeking to intervene to show that this is a proper case for intervention. (Muller, *supra*, 174 Cal.App.2d at 515.) “If proper procedures are followed [citation], the court has discretion to permit a nonparty to intervene in litigation pending between others, provided: [t]he nonparty has a direct and immediate interest in the litigation; and [t]he intervention will not enlarge the issues in the case; and [t]he reasons for intervention outweigh any opposition by the existing parties.” (Truck Ins. Exchange v. Superior Court (Transco Syndicate No. 1) (1997) 60 Cal.App.4th 342, 346 (citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 1997) ¶ 2:414, p. 2-55 rev. # 1, 1996, original italics.)

For an interest to be direct and immediate, the interest “must be of such a direct and immediate nature that the moving party ‘will either gain or lose by the direct legal operation and effect of the judgment.’” (Lindelli v. Town of San Anselmo (2006) 139 Cal.App.4th 1499, 1505 (quoting City and County of San Francisco v. State of California (2005) 128 Cal.App.4th 1030, 1037).) “A person has a direct interest justifying intervention in litigation where the judgment in the action of itself adds to or detracts from his legal rights without reference to right and duties not involved in the litigation.” (Id. (emphasis in original).) “An interest is consequential and thus insufficient for intervention when the action in which intervention is sought does not directly affect it although the results of the action may indirectly benefit or harm its owner.” (Id.)

Movant

contends that it is the liability insurer for Buenrostro Farm. (Enge Decl. ¶ 4.) Movant contends that Buenrostro Farm is a suspended corporation, and therefore cannot defend itself in this action. (Enge Decl. ¶ 2.) Movant contends that, therefore, the only way for Movant to protect its interest in this action is to intervene.

It is apparent

that Movant has an direct and immediate interest in this litigation, because if judgment or default judgment is found against Buenrostro Farm, Movant will be obligated to make payments under the insurance contract between Movant and Buenrostro Farm. There is no indication that Movant's intervention will enlarge the issues in this action, as Movant's desired intervention is solely for the purpose of contesting Buenrostro Farm's liability and Plaintiff's claimed damages, issues which were already present in this action.

Under Reliance

Ins. Co. v. Superior Court (2000) 84 Cal.App.4th 383, intervention by a liability insurer on behalf of a suspended corporation, in order to protect the insurer's own interests in an action brought against the suspended corporation, is appropriate.

The court will

therefore grant Movant's motion for leave to intervene.

3. Conclusion

Based on the

foregoing, the court GRANTS Movant's motion for leave to intervene. Movant is ordered to separately file its pleading in intervention in compliance with Code of Civil Procedure § 387, subd. (e)(1).

Movant is ordered to give notice.

IT IS SO ORDERED.

DATED: July 2, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court